

49/2014 on 15 June, 2015

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F.A.T. 49 of 2014
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C.A.N.1141 of 2014

Re: CAN 1141 of 2014

Mr. Amitava Pain
Mr. Partha Pratim Mukherjee
....for the appellant

The instant appeal arises out of an order passed on an application under Section 13 of the Hindu Marriage Act admittedly beyond time along with an application under Section 5 of the Limitation Act.

This Hon'ble Court has been pleased to issue notice on an application under Section 5 and in pursuance thereof an affidavit of service has been filed wherein it has been stated that the notice was sent by speed post with A/D card on 10th March, 2015 and till the preparation of the affidavit of service i.e. 30th March, 2015 neither the undelivered envelope nor the A/D card has been returned back.

Under the circumstances, we have gone through the averments of the application under Section 5 of the Limitation Act and delay in filing of the instant application has been explained satisfactorily.

Delay is condoned.

The application under Section 5 of the Limitation Act is allowed upon payment of costs 50 G.Ms. The costs will be deposited in the account of the High Court Mediation and Conciliation Committee through State Legal Services Authorities.

Registry is directed to summon Lower Court Records. Counsel for the appellant is directed to prepare necessary paper books.

Urgent photostat certified copy of this order, if applied for, be supplied to the parties, as early as possible.

(Rajiv Sharma,J.) (Shivakant Prasad,J.)